

Ex. Eng. E.D. Division v. Ashish Purohit

Allahabad High Court · Single Judge · 24 September 2014 · Writ-C No. 52256 of 2014 · **Stay of Permanent Lok Adalat order; listed after 16 October 2014.**

HEADNOTE

On a licensee's writ against a Permanent Lok Adalat order, the High Court stayed that order pending consideration of whether the Lok Adalat could entertain a dispute said to be raisable under Clause 6.5 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The Executive Engineer, Electricity Distribution Division, challenged before the Allahabad High Court an order dated 31 July 2014 of the Permanent Lok Adalat in a dispute brought by consumer Ashish Purohit. The licensee's case was that the consumer's grievance could be raised under Clause 6.5 of the Electricity Supply Code, 2005, and that the Permanent Lok Adalat therefore lacked jurisdiction to entertain the petition. The writ came up for admission on 24 September 2014.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Permanent Lok Adalat jurisdiction vis-à-vis Clause 6.5

HOLDING

The High Court admitted the licensee's writ, recorded that the Permanent Lok Adalat's jurisdiction to entertain a dispute said to be raisable under Clause 6.5 of the Electricity Supply Code, 2005 required consideration, directed affidavits, listed the matter after 16 October 2014, and stayed operation of the Lok Adalat's order dated 31.7.2014 till further orders. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

On a licensee's writ against a Permanent Lok Adalat order, the High Court stayed that order pending consideration of whether the Lok Adalat could entertain a dispute said to be raisable under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT HAD JURISDICTION TO ENTERTAIN THE CONSUMER'S PETITION WHEN THE DISPUTE COULD BE RAISED UNDER CLAUSE 6.5

The Court recorded that the question requires consideration and did not decide it. ¶ 1